and plants without the assistance of man, according to the requirements of their nature; thirdly, because of Divine providence, through ignorance of which the gentiles are solicitous in seeking temporal goods before all others. Consequently He concludes that we should be solicitous most of all about spiritual goods, hoping that temporal goods also may be granted us according to our needs, if we do what we ought to do.

Reply to Objection 1: Temporal goods are subjected to man that he may use them according to his needs, not that he may place his end in them and be over solicitous about them.

Reply to Objection 2: The solicitude of a man who gains his bread by bodily labor is not superfluous but proportionate; hence Jerome says on Mat. 6:31, "Be not solicitous," that "labor is necessary, but solicitude must be banished," namely superfluous solicitude which unsettles the mind.

Reply to Objection 3: In the works of mercy solicitude about temporal things is directed to charity as its end, wherefore it is not unlawful, unless it be superfluous.

Whether we should be solicitous about the future?

Objection 1: It would seem that we should be solicitous about the future. For it is written (Prov. 6:6-8): "Go to the ant, O sluggard, and consider her ways and learn wisdom; which, although she hath no guide, nor master . . . provideth her meat for herself in the summer, and gathereth her food in the harvest." Now this is to be solicitous about the future. Therefore solicitude about the future is praiseworthy.

Objection 2: Further, solicitude pertains to prudence. But prudence is chiefly about the future, since its principal part is "foresight of future things," as stated above (Q[49], A[6], ad 1). Therefore it is virtuous to be solicitous about the future.

Objection 3: Further, whoever puts something by that he may keep it for the morrow, is solicitous about the future. Now we read (Jn. 12:6) that Christ had a bag for keeping things in, which Judas carried, and (Acts 4:34-37) that the Apostles kept the price of the land, which had been laid at their feet. Therefore it is lawful to be solicitous about the future.

On the contrary, Our Lord said (Mat. 6:34): "Be not . . . solicitous for tomorrow"; where "tomorrow" stands for the future, as Jerome says in his commentary on this passage.

I answer that, No work can be virtuous, unless it be vested with its due circumstances, and among these is the due time, according to Eccles. 8:6, "There is a time and opportunity for every business"; which applies not only to external deeds but also to internal solicitude. For every time has its own fitting proper solicitude; thus solicitude about the crops belongs to the summer time, and solicitude about the vintage to the time of autumn. Accordingly if a man were solicitous about the vintage during the summer, he would be needlessly forestalling the solicitude belonging to a future time. Hence Our Lord forbids such like excessive solicitude, saying: "Be . . . not solicitous for tomorrow," wherefore He adds, "for the morrow will be solicitous for itself," that is to say, the morrow will have its own solicitude, which will be burden enough for the soul. This is what He means by adding: "Sufficient for the day is the evil thereof," namely, the burden of solicitude.

Reply to Objection 1: The ant is solicitous at a befitting time, and it is this that is proposed for our example.

Reply to Objection 2: Due foresight of the future belongs to prudence. But it would be an inordinate foresight or solicitude about the future, if a man were to seek temporal things, to which the terms "past" and "future" apply, as ends, or if he were to seek them in excess of the needs of the present life, or if he were to forestall the time for solicitude.

Reply to Objection 3: As Augustine says (De Serm. Dom. in Monte ii, 17), "when we see a servant of God taking thought lest he lack these needful things, we must not judge him to be solicitous for the morrow, since even Our Lord deigned for our example to have a purse, and we read in the Acts of the Apostles that they procured the necessary means of livelihood in view of the future on account of a threatened famine. Hence Our Lord does not condemn those who according to human custom, provide themselves with such things, but those who oppose themselves to God for the sake of these things."

Whether these vices arise from covetousness?

Objection 1: It would seem that these vices do not arise from covetousness. As stated above (Q[43], A[6]) lust is the chief cause of lack of rectitude in the reason. Now these vices are opposed to right reason, i.e. to prudence. Therefore they arise chiefly from lust; especially since the Philosopher says (Ethic. vii, 6) that "Venus is full of guile and her girdle is many colored" and that "he who is incontinent in desire acts with cunning."

Objection 2: Further, these vices bear a certain resemblance to prudence, as stated above (Q[47], A[13]). Now, since prudence is in the reason, the more spiritual vices seem to be more akin thereto, such as pride and vainglory. Therefore the aforesaid vices seem to arise from pride rather than from covetousness.

Objection 3: Further, men make use of stratagems not only in laying hold of other people's goods, but also in plotting murders, the former of which pertains to covetousness, and the latter to anger. Now the use of stratagems pertains to craftiness, guile, and fraud. Therefore the aforesaid vices arise not only from covetousness, but also from anger.

On the contrary, Gregory (Moral. xxxi, 45) states that fraud is a daughter of covetousness.

I answer that, As stated above (A[3]; Q[47], A[13]), carnal prudence and craftiness, as well as guile and fraud, bear a certain resemblance to prudence in some kind of use of the reason. Now among all the moral virtues it is justice wherein the use of right reason appears chiefly, for justice is in the rational appetite. Hence the undue use of reason appears chiefly in the vices opposed to justice, the chief of which is covetousness. Therefore the aforesaid vices arise chiefly from covetousness.

Reply to Objection 1: On account of the vehemence of pleasure and of concupiscence, lust entirely suppresses the reason from exercising its act: whereas in the aforesaid vices there is some use of reason, albeit inordinate. Hence these vices do not arise directly from lust. When the Philosopher says that "Venus is full of guile," he is referring to a certain resemblance, in so far as she carries man away suddenly, just as he is moved in deceitful actions, yet not by means of craftiness but rather by the vehemence of concupiscence and pleasure; wherefore he adds that "Venus doth cozen the wits of the wisest man" [*Cf. Iliad xiv, 214-217].

Reply to Objection 2: To do anything by stratagem seems to be due to pusillanimity: because a magnanimous man wishes to act openly, as the Philosopher says (Ethic. iv, 3). Wherefore, as

pride resembles or apes magnanimity, it follows that the aforesaid vices which make use of fraud and guile, do not arise directly from pride, but rather from covetousness, which seeks its own profit and sets little by excellence.

Reply to Objection 3: Anger's movement is sudden, hence it acts with precipitation, and without counsel, contrary to the use of the aforesaid vices, though these use counsel inordinately. That men use stratagems in plotting murders, arises not from anger but rather from hatred, because the angry man desires to harm manifestly, as the Philosopher states (Rhet. ii, 2,3) [*Cf. Ethic. vii, 6].

OF THE PRECEPTS RELATING TO PRUDENCE (TWO ARTICLES)

We must now consider the precepts relating to prudence, under which head there are two points of inquiry:

(1) The precepts of prudence;

(2) The precepts relating to the opposite vices.

Whether the precepts of the decalogue should have included a precept of prudence?

Objection 1: It would seem that the precepts of the decalogue should have included a precept of prudence. For the chief precepts should include a precept of the chief virtue. Now the chief precepts are those of the decalogue. Since then prudence is the chief of the moral virtues, it seems that the precepts of the decalogue should have included a precept of prudence.

Objection 2: Further, the teaching of the Gospel contains the Law especially with regard to the precepts of the decalogue. Now the teaching of the Gospel contains a precept of prudence (Mat. 10:16): "Be ye . . . prudent [Douay: 'wise'] as serpents." Therefore the precepts of the decalogue should have included a precept of prudence.

Objection 3: Further, the other lessons of the Old Testament are directed to the precepts of the decalogue: wherefore it is written (Malach. 4:4): "Remember the law of Moses My servant, which I commanded him in Horeb." Now the other lessons of the Old Testament include precepts of prudence; for instance (Prov. 3:5): "Lean not upon thy own prudence"; and further on (Prov. 4:25): "Let thine eyelids go before thy steps." Therefore the Law also should have contained a precept of prudence, especially among the precepts of the decalogue.

The contrary however appears to anyone who goes through the precepts of the decalogue.

I answer that, As stated above (FS, Q[100], A[3]; A[5], ad 1) when we were treating of precepts, the commandments of the decalogue being given to the whole people, are a matter of common knowledge to all, as coming under the purview of natural reason. Now foremost among the things dictated by natural reason are the ends of human life, which are to the practical order what naturally known principles are to the speculative order, as shown above (Q[47], A[6]). Now prudence is not about the end, but about the means, as stated above (Q[47], A[6]). Hence it was not fitting that the precepts of the decalogue should include a precept relating directly to prudence. And yet all the precepts of the decalogue are related to prudence, in so far as it directs all virtuous acts.

Reply to Objection 1: Although prudence is simply foremost among all the moral virtues, yet justice, more than any other virtue, regards its object under the aspect of something due, which is a necessary condition for a precept, as stated above (Q[44], A[1]; FS, Q[99], AA[1],5). Hence it

behooved the chief precepts of the Law, which are those of the decalogue, to refer to justice rather than to prudence.

Reply to Objection 2: The teaching of the Gospel is the doctrine of perfection. Therefore it needed to instruct man perfectly in all matters relating to right conduct, whether ends or means: wherefore it behooved the Gospel teaching to contain precepts also of prudence.

Reply to Objection 3: Just as the rest of the teaching of the Old Testament is directed to the precepts of the decalogue as its end, so it behooved man to be instructed by the subsequent lessons of the Old Testament about the act of prudence which is directed to the means.

Whether the prohibitive precepts relating to the vices opposed to prudence are fittingly propounded in the Old Law?

Objection 1: It would seem that the prohibitive precepts relating to the vices opposed to prudence are unfittingly propounded in the Old Law. For such vices as imprudence and its parts which are directly opposed to prudence are not less opposed thereto, than those which bear a certain resemblance to prudence, such as craftiness and vices connected with it. Now the latter vices are forbidden in the Law: for it is written (Lev. 19:13): "Thou shalt not calumniate thy neighbor," and (Dt. 25:13): "Thou shalt not have divers weights in thy bag, a greater and a less." Therefore there should have also been prohibitive precepts about the vices directly opposed to prudence.

Objection 2: Further, there is room for fraud in other things than in buying and selling. Therefore the Law unfittingly forbade fraud solely in buying and selling.

Objection 3: Further, there is the same reason for prescribing an act of virtue as for prohibiting the act of a contrary vice. But acts of prudence are not prescribed in the Law. Therefore neither should any contrary vices have been forbidden in the Law.

The contrary, however, appears from the precepts of the Law which are quoted in the first objection.

I answer that, As stated above (A[1]), justice, above all, regards the aspect of something due, which is a necessary condition for a precept, because justice tends to render that which is due to another, as we shall state further on (Q[58], A[2]). Now craftiness, as to its execution, is committed chiefly in matters of justice, as stated above (Q[55], A[8]): and so it was fitting that the Law should contain precepts forbidding the execution of craftiness, in so far as this pertains to injustice, as when a man uses guile and fraud in calumniating another or in stealing his goods.

Reply to Objection 1: Those vices that are manifestly opposed to prudence, do not pertain to injustice in the same way as the execution of craftiness, and so they are not forbidden in the Law, as fraud and guile are, which latter pertain to injustice

Reply to Objection 2: All guile and fraud committed in matters of injustice, can be understood to be forbidden in the prohibition of calumny (Lev. 19:13). Yet fraud and guile are wont to be practiced chiefly in buying and selling, according to Ecclus. 26:28, "A huckster shall not be justified from the sins of the lips": and it is for this reason that the Law contained a special precept forbidding fraudulent buying and selling.

Reply to Objection 3: All the precepts of the Law that relate to acts of justice pertain to the execution of prudence, even as the precepts prohibitive of stealing, calumny and fraudulent selling pertain to the execution of craftiness.

OF RIGHT (FOUR ARTICLES)

After considering prudence we must in due sequence consider justice, the consideration of which will be fourfold:

(1) Of justice;

(2) Of its parts;

(3) Of the corresponding gift;

(4) Of the precepts relating to justice.

Four points will have to be considered about justice: (1) Right; (2) Justice itself; (3) Injustice; (4) Judgment.

Under the first head there are four points of inquiry:

(1) Whether right is the object of justice?

(2) Whether right is fittingly divided into natural and positive right?

(3) Whether the right of nations is the same as natural right?

(4) Whether right of dominion and paternal right are distinct species?

Whether right is the object of justice?

Objection 1: It would seem that right is not the object of justice. For the jurist Celsus says [*Digest. i, 1; De Just. et Jure 1] that "right is the art of goodness and equality." Now art is not the object of justice, but is by itself an intellectual virtue. Therefore right is not the object of justice.

Objection 2: Further, "Law," according to Isidore (Etym. v, 3), "is a kind of right." Now law is the object not of justice but of prudence, wherefore the Philosopher [*Ethic. vi, 8] reckons "legislative" as one of the parts of prudence. Therefore right is not the object of justice.

Objection 3: Further, justice, before all, subjects man to God: for Augustine says (De Moribus Eccl. xv) that "justice is love serving God alone, and consequently governing aright all things subject to man." Now right [jus] does not pertain to Divine things, but only to human affairs, for Isidore says (Etym. v, 2) that "'fas' is the Divine law, and 'jus,' the human law." Therefore right is not the object of justice.

On the contrary, Isidore says (Etym. v, 2) that "'jus' [right] is so called because it is just." Now the "just" is the object of justice, for the Philosopher declares (Ethic. v, 1) that "all are agreed in giving the name of justice to the habit which makes men capable of doing just actions."

I answer that, It is proper to justice, as compared with the other virtues, to direct man in his relations with others: because it denotes a kind of equality, as its very name implies; indeed we are wont to say that things are adjusted when they are made equal, for equality is in reference of one thing to some other. On the other hand the other virtues perfect man in those matters only which befit him in relation to himself. Accordingly that which is right in the works of the other virtues, and to which the intention of the virtue tends as to its proper object, depends on its relation to the agent only, whereas the right in a work of justice, besides its relation to the agent, is set up by its relation to others. Because a man's work is said to be just when it is related to some other by way of some kind of equality, for instance the payment of the wage due for a service rendered. And so a thing is said to be just, as having the rectitude of justice, when it is the term of an act of justice, without taking into account the way in which it is done by the agent: whereas in the other virtues nothing is declared to be right unless it is done in a certain way by the agent. For this reason justice

has its own special proper object over and above the other virtues, and this object is called the just, which is the same as "right." Hence it is evident that right is the object of justice.

Reply to Objection 1: It is usual for words to be distorted from their original signification so as to mean something else: thus the word "medicine" was first employed to signify a remedy used for curing a sick person, and then it was drawn to signify the art by which this is done. In like manner the word "jus" [right] was first of all used to denote the just thing itself, but afterwards it was transferred to designate the art whereby it is known what is just, and further to denote the place where justice is administered, thus a man is said to appear "in jure" [*In English we speak of a court of law, a barrister at law, etc.], and yet further, we say even that a man, who has the office of exercising justice, administers the jus even if his sentence be unjust.

Reply to Objection 2: Just as there pre-exists in the mind of the craftsman an expression of the things to be made externally by his craft, which expression is called the rule of his craft, so too there pre-exists in the mind an expression of the particular just work which the reason determines, and which is a kind of rule of prudence. If this rule be expressed in writing it is called a "law," which according to Isidore (Etym. v, 1) is "a written decree": and so law is not the same as right, but an expression of right.

Reply to Objection 3: Since justice implies equality, and since we cannot offer God an equal return, it follows that we cannot make Him a perfectly just repayment. For this reason the Divine law is not properly called "jus" but "fas," because, to wit, God is satisfied if we accomplish what we can. Nevertheless justice tends to make man repay God as much as he can, by subjecting his mind to Him entirely.

Whether right is fittingly divided into natural right and positive right?

Objection 1: It would seem that right is not fittingly divided into natural right and positive right. For that which is natural is unchangeable, and is the same for all. Now nothing of the kind is to be found in human affairs, since all the rules of human right fail in certain cases, nor do they obtain force everywhere. Therefore there is no such thing as natural right.

Objection 2: Further, a thing is called "positive" when it proceeds from the human will. But a thing is not just, simply because it proceeds from the human will, else a man's will could not be unjust. Since then the "just" and the "right" are the same, it seems that there is no positive right.

Objection 3: Further, Divine right is not natural right, since it transcends human nature. In like manner, neither is it positive right, since it is based not on human, but on Divine authority. Therefore right is unfittingly divided into natural and positive.

On the contrary, The Philosopher says (Ethic. v, 7) that "political justice is partly natural and partly legal," i.e. established by law.

I answer that, As stated above (A[1]) the "right" or the "just" is a work that is adjusted to another person according to some kind of equality. Now a thing can be adjusted to a man in two ways: first by its very nature, as when a man gives so much that he may receive equal value in return, and this is called "natural right." In another way a thing is adjusted or commensurated to another person, by agreement, or by common consent, when, to wit, a man deems himself satisfied, if he receive so much. This can be done in two ways: first by private agreement, as that which is confirmed by an agreement between private individuals; secondly, by public agreement, as when

the whole community agrees that something should be deemed as though it were adjusted and commensurated to another person, or when this is decreed by the prince who is placed over the people, and acts in its stead, and this is called "positive right."

Reply to Objection 1: That which is natural to one whose nature is unchangeable, must needs be such always and everywhere. But man's nature is changeable, wherefore that which is natural to man may sometimes fail. Thus the restitution of a deposit to the depositor is in accordance with natural equality, and if human nature were always right, this would always have to be observed; but since it happens sometimes that man's will is unrighteous there are cases in which a deposit should not be restored, lest a man of unrighteous will make evil use of the thing deposited: as when a madman or an enemy of the common weal demands the return of his weapons.

Reply to Objection 2: The human will can, by common agreement, make a thing to be just provided it be not, of itself, contrary to natural justice, and it is in such matters that positive right has its place. Hence the Philosopher says (Ethic. v, 7) that "in the case of the legal just, it does not matter in the first instance whether it takes one form or another, it only matters when once it is laid down." If, however, a thing is, of itself, contrary to natural right, the human will cannot make it just, for instance by decreeing that it is lawful to steal or to commit adultery. Hence it is written (Is. 10:1): "Woe to them that make wicked laws."

Reply to Objection 3: The Divine right is that which is promulgated by God. Such things are partly those that are naturally just, yet their justice is hidden to man, and partly are made just by God's decree. Hence also Divine right may be divided in respect of these two things, even as human right is. For the Divine law commands certain things because they are good, and forbids others, because they are evil, while others are good because they are prescribed, and others evil because they are forbidden.

Whether the right of nations is the same as the natural right?

Objection 1: It would seem that the right of nations is the same as the natural right. For all men do not agree save in that which is natural to them. Now all men agree in the right of nations; since the jurist [*Ulpian: Digest. i, 1; De Just. et Jure i] "the right of nations is that which is in use among all nations." Therefore the right of nations is the natural right.

Objection 2: Further, slavery among men is natural, for some are naturally slaves according to the Philosopher (Polit. i, 2). Now "slavery belongs to the right of nations," as Isidore states (Etym. v, 4). Therefore the right of nations is a natural right.

Objection 3: Further, right as stated above (A[2]) is divided into natural and positive. Now the right of nations is not a positive right, since all nations never agreed to decree anything by common agreement. Therefore the right of nations is a natural right.

On the contrary, Isidore says (Etym. v, 4) that "right is either natural, or civil, or right of nations," and consequently the right of nations is distinct from natural right.

I answer that, As stated above (A[2]), the natural right or just is that which by its very nature is adjusted to or commensurate with another person. Now this may happen in two ways; first, according as it is considered absolutely: thus a male by its very nature is commensurate with the female to beget offspring by her, and a parent is commensurate with the offspring to nourish it. Secondly a thing is naturally commensurate with another person, not according as it is considered

absolutely, but according to something resultant from it, for instance the possession of property. For if a particular piece of land be considered absolutely, it contains no reason why it should belong to one man more than to another, but if it be considered in respect of its adaptability to cultivation, and the unmolested use of the land, it has a certain commensuration to be the property of one and not of another man, as the Philosopher shows (Polit. ii, 2).

Now it belongs not only to man but also to other animals to apprehend a thing absolutely: wherefore the right which we call natural, is common to us and other animals according to the first kind of commensuration. But the right of nations falls short of natural right in this sense, as the jurist [*Digest. i, 1; De Just. et Jure i] says because "the latter is common to all animals, while the former is common to men only." On the other hand to consider a thing by comparing it with what results from it, is proper to reason, wherefore this same is natural to man in respect of natural reason which dictates it. Hence the jurist Gaius says (Digest. i, 1; De Just. et Jure i, 9): "whatever natural reason decrees among all men, is observed by all equally, and is called the right of nations." This suffices for the Reply to the First Objection.

Reply to Objection 2: Considered absolutely, the fact that this particular man should be a slave rather than another man, is based, not on natural reason, but on some resultant utility, in that it is useful to this man to be ruled by a wiser man, and to the latter to be helped by the former, as the Philosopher states (Polit. i, 2). Wherefore slavery which belongs to the right of nations is natural in the second way, but not in the first.

Reply to Objection 3: Since natural reason dictates matters which are according to the right of nations, as implying a proximate equality, it follows that they need no special institution, for they are instituted by natural reason itself, as stated by the authority quoted above

Whether paternal right and right of dominion should be distinguished as special species?

Objection 1: It would seem that "paternal right" and "right of dominion" should not be distinguished as special species. For it belongs to justice to render to each one what is his, as Ambrose states (De Offic. i, 24). Now right is the object of justice, as stated above (A[1]). Therefore right belongs to each one equally; and we ought not to distinguish the rights of fathers and masters as distinct species.

Objection 2: Further, the law is an expression of what is just, as stated above (A[1], ad 2). Now a law looks to the common good of a city or kingdom, as stated above (FS, Q[90], A[2]), but not to the private good of an individual or even of one household. Therefore there is no need for a special right of dominion or paternal right, since the master and the father pertain to a household, as stated in Polit. i, 2.

Objection 3: Further, there are many other differences of degrees among men, for instance some are soldiers, some are priests, some are princes. Therefore some special kind of right should be allotted to them.

On the contrary, The Philosopher (Ethic. v, 6) distinguishes right of dominion, paternal right and so on as species distinct from civil right.

I answer that, Right or just depends on commensuration with another person. Now "another" has a twofold signification. First, it may denote something that is other simply, as that which is altogether distinct; as, for example, two men neither of whom is subject to the other, and both of

whom are subjects of the ruler of the state; and between these according to the Philosopher (Ethic. v, 6) there is the "just" simply. Secondly a thing is said to be other from something else, not simply, but as belonging in some way to that something else: and in this way, as regards human affairs, a son belongs to his father, since he is part of him somewhat, as stated in Ethic. viii, 12, and a slave belongs to his master, because he is his instrument, as stated in Polit. i, 2 [*Cf. Ethic. viii, 11]. Hence a father is not compared to his son as to another simply, and so between them there is not the just simply, but a kind of just, called "paternal." In like manner neither is there the just simply, between master and servant, but that which is called "dominative." A wife, though she is something belonging to the husband, since she stands related to him as to her own body, as the Apostle declares (Eph. 5:28), is nevertheless more distinct from her husband, than a son from his father, or a slave from his master: for she is received into a kind of social life, that of matrimony, wherefore according to the Philosopher (Ethic. v, 6) there is more scope for justice between husband and wife than between father and son, or master and slave, because, as husband and wife have an immediate relation to the community of the household, as stated in Polit. i, 2,5, it follows that between them there is "domestic justice" rather than "civic."

Reply to Objection 1: It belongs to justice to render to each one his right, the distinction between individuals being presupposed: for if a man gives himself his due, this is not strictly called "just." And since what belongs to the son is his father's, and what belongs to the slave is his master's, it follows that properly speaking there is not justice of father to son, or of master to slave.

Reply to Objection 2: A son, as such, belongs to his father, and a slave, as such, belongs to his master; yet each, considered as a man, is something having separate existence and distinct from others. Hence in so far as each of them is a man, there is justice towards them in a way: and for this reason too there are certain laws regulating the relations of father to his son, and of a master to his slave; but in so far as each is something belonging to another, the perfect idea of "right" or "just" is wanting to them.

Reply to Objection 3: All other differences between one person and another in a state, have an immediate relation to the community of the state and to its ruler, wherefore there is just towards them in the perfect sense of justice. This "just" however is distinguished according to various offices, hence when we speak of "military," or "magisterial," or "priestly" right, it is not as though such rights fell short of the simply right, as when we speak of "paternal" right, or right of "dominion," but for the reason that something proper is due to each class of person in respect of his particular office.

OF JUSTICE (TWELVE ARTICLES)

We must now consider justice. Under this head there are twelve points of inquiry:

(1) What is justice?

(2) Whether justice is always towards another?

(3) Whether it is a virtue?

(4) Whether it is in the will as its subject?

(5) Whether it is a general virtue?

(6) Whether, as a general virtue, it is essentially the same as every virtue?

(7) Whether there is a particular justice?
(8) Whether particular justice has a matter of its own?
(9) Whether it is about passions, or about operations only?
(10) Whether the mean of justice is the real mean?
(11) Whether the act of justice is to render to everyone his own?
(12) Whether justice is the chief of the moral virtues?

Whether justice is fittingly defined as being the perpetual and constant will to render to each one his right?

Objection 1: It would seem that lawyers have unfittingly defined justice as being "the perpetual and constant will to render to each one his right" [*Digest. i, 1; De Just. et Jure 10]. For, according to the Philosopher (Ethic. v, 1), justice is a habit which makes a man "capable of doing what is just, and of being just in action and in intention." Now "will" denotes a power, or also an act. Therefore justice is unfittingly defined as being a will.

Objection 2: Further, rectitude of the will is not the will; else if the will were its own rectitude, it would follow that no will is unrighteous. Yet, according to Anselm (De Veritate xii), justice is rectitude. Therefore justice is not the will.

Objection 3: Further, no will is perpetual save God's. If therefore justice is a perpetual will, in God alone will there be justice.

Objection 4: Further, whatever is perpetual is constant, since it is unchangeable. Therefore it is needless in defining justice, to say that it is both "perpetual" and "constant."

Objection 5: Further, it belongs to the sovereign to give each one his right. Therefore, if justice gives each one his right, it follows that it is in none but the sovereign: which is absurd.

Objection 6: Further, Augustine says (De Moribus Eccl. xv) that "justice is love serving God alone." Therefore it does not render to each one his right.

I answer that, The aforesaid definition of justice is fitting if understood aright. For since every virtue is a habit that is the principle of a good act, a virtue must needs be defined by means of the good act bearing on the matter proper to that virtue. Now the proper matter of justice consists of those things that belong to our intercourse with other men, as shall be shown further on (A[2]). Hence the act of justice in relation to its proper matter and object is indicated in the words, "Rendering to each one his right," since, as Isidore says (Etym. x), "a man is said to be just because he respects the rights [jus] of others."

Now in order that an act bearing upon any matter whatever be virtuous, it requires to be voluntary, stable, and firm, because the Philosopher says (Ethic. ii, 4) that in order for an act to be virtuous it needs first of all to be done "knowingly," secondly to be done "by choice," and "for a due end," thirdly to be done "immovably." Now the first of these is included in the second, since "what is done through ignorance is involuntary" (Ethic. iii, 1). Hence the definition of justice mentions first the "will," in order to show that the act of justice must be voluntary; and mention is made afterwards of its "constancy" and "perpetuity" in order to indicate the firmness of the act.

Accordingly, this is a complete definition of justice; save that the act is mentioned instead of the habit, which takes its species from that act, because habit implies relation to act. And if anyone would reduce it to the proper form of a definition, he might say that "justice is a habit whereby a man renders to each one his due by a constant and perpetual will": and this is about the same definition as that given by the Philosopher (Ethic. v, 5) who says that "justice is a habit whereby a man is said to be capable of doing just actions in accordance with his choice."

Reply to Objection 1: Will here denotes the act, not the power: and it is customary among writers to define habits by their acts: thus Augustine says (Tract. in Joan. xl) that "faith is to believe what one sees not."

Reply to Objection 2: Justice is the same as rectitude, not essentially but causally; for it is a habit which rectifies the deed and the will.

Reply to Objection 3: The will may be called perpetual in two ways. First on the part of the will's act which endures for ever, and thus God's will alone is perpetual. Secondly on the part of the subject, because, to wit, a man wills to do a certain thing always. and this is a necessary condition of justice. For it does not satisfy the conditions of justice that one wish to observe justice in some particular matter for the time being, because one could scarcely find a man willing to act unjustly in every case; and it is requisite that one should have the will to observe justice at all times and in all cases.

Reply to Objection 4: Since "perpetual" does not imply perpetuity of the act of the will, it is not superfluous to add "constant": for while the "perpetual will" denotes the purpose of observing justice always, "constant" signifies a firm perseverance in this purpose.

Reply to Objection 5: A judge renders to each one what belongs to him, by way of command and direction, because a judge is the "personification of justice," and "the sovereign is its guardian" (Ethic. v, 4). On the other hand, the subjects render to each one what belongs to him, by way of execution.

Reply to Objection 6: Just as love of God includes love of our neighbor, as stated above (Q[25], A[1]), so too the service of God includes rendering to each one his due.

Whether justice is always towards one another?

Objection 1: It would seem that justice is not always towards another. For the Apostle says (Rom. 3:22) that "the justice of God is by faith of Jesus Christ." Now faith does not concern the dealings of one man with another. Neither therefore does justice.

Objection 2: Further, according to Augustine (De Moribus Eccl. xv), "it belongs to justice that man should direct to the service of God his authority over the things that are subject to him." Now the sensitive appetite is subject to man, according to Gn. 4:7, where it is written: "The lust thereof," viz. of sin, "shall be under thee, and thou shalt have dominion over it." Therefore it belongs to justice to have dominion over one's own appetite: so that justice is towards oneself.

Objection 3: Further, the justice of God is eternal. But nothing else is co-eternal with God. Therefore justice is not essentially towards another.

Objection 4: Further, man's dealings with himself need to be rectified no less than his dealings with another. Now man's dealings are rectified by justice, according to Prov. 11:5, "The justice of the upright shall make his way prosperous." Therefore justice is about our dealings not only with others, but also with ourselves.

On the contrary, Tully says (De Officiis i, 7) that "the object of justice is to keep men together in society and mutual intercourse." Now this implies relationship of one man to another. Therefore justice is concerned only about our dealings with others.

I answer that, As stated above (Q[57], A[1]) since justice by its name implies equality, it denotes essentially relation to another, for a thing is equal, not to itself, but to another. And forasmuch

as it belongs to justice to rectify human acts, as stated above (Q[57], A[1]; FS, Q[113], A[1]) this otherness which justice demands must needs be between beings capable of action. Now actions belong to supposits [*Cf. FP, Q[29], A[2]] and wholes and, properly speaking, not to parts and forms or powers, for we do not say properly that the hand strikes, but a man with his hand, nor that heat makes a thing hot, but fire by heat, although such expressions may be employed metaphorically. Hence, justice properly speaking demands a distinction of supposits, and consequently is only in one man towards another. Nevertheless in one and the same man we may speak metaphorically of his various principles of action such as the reason, the irascible, and the concupiscible, as though they were so many agents: so that metaphorically in one and the same man there is said to be justice in so far as the reason commands the irascible and concupiscible, and these obey reason; and in general in so far as to each part of man is ascribed what is becoming to it. Hence the Philosopher (Ethic. v, 11) calls this "metaphorical justice."

Reply to Objection 1: The justice which faith works in us, is that whereby the ungodly is justified it consists in the due coordination of the parts of the soul, as stated above (FS, Q[113], A[1]) where we were treating of the justification of the ungodly. Now this belongs to metaphorical justice, which may be found even in a man who lives all by himself.

This suffices for the Reply to the Second Objection.

Reply to Objection 3: God's justice is from eternity in respect of the eternal will and purpose (and it is chiefly in this that justice consists); although it is not eternal as regards its effect, since nothing is co-eternal with God.

Reply to Objection 4: Man's dealings with himself are sufficiently rectified by the rectification of the passions by the other moral virtues. But his dealings with others need a special rectification, not only in relation to the agent, but also in relation to the person to whom they are directed. Hence about such dealings there is a special virtue, and this is justice.

Whether justice is a virtue?

Objection 1: It would seem that justice is not a virtue. For it is written (Lk. 17:10): "When you shall have done all these things that are commanded you, say: We are unprofitable servants; we have done that which we ought to do." Now it is not unprofitable to do a virtuous deed: for Ambrose says (De Officiis ii, 6): "We look to a profit that is estimated not by pecuniary gain but by the acquisition of godliness." Therefore to do what one ought to do, is not a virtuous deed. And yet it is an act of justice. Therefore justice is not a virtue.

Objection 2: Further, that which is done of necessity, is not meritorious. But to render to a man what belongs to him, as justice requires, is of necessity. Therefore it is not meritorious. Yet it is by virtuous actions that we gain merit. Therefore justice is not a virtue.

Objection 3: Further, every moral virtue is about matters of action. Now those things which are wrought externally are not things concerning behavior but concerning handicraft, according to the Philosopher (Metaph. ix) [*Didot ed., viii, 8]. Therefore since it belongs to justice to produce externally a deed that is just in itself, it seems that justice is not a moral virtue.

On the contrary, Gregory says (Moral. ii, 49) that "the entire structure of good works is built on four virtues," viz. temperance, prudence, fortitude and justice